

Tentative Rulings for August 3, 2026 Department 6

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 6 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 830 3643**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2204989	UNITED EL SEGUNDO, INC. VS MY MONTECITO INC SH	MOTION FOR ORDER ISSUING WRIT OF EXECUTION AUTHORIZING SALE OF PROPERTY OR IN THE ALTERNATIVE ASSIGNMENT OF RENTS

Tentative Ruling:

This motion is unopposed. Motion for an order issuing a writ of execution is granted. The Court notes that a Writ of Execution was issued on 6/1/2026. The order bears the clerk's signature and the Court's seal.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502311	HERNANDEZ VS DENIZ	MOTION FOR LEAVE TO INTERVENE BY BENCHMARK INSURANCE

Tentative Ruling:

This motion is unopposed. Motion to intervene is granted. Moving party is ordered to file and serve its Complaint in intervention within 21 days of this order.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506010	LIU VS MASCOT INTERNATIONAL LOGISTICS INC.	MOTION TO COMPEL BY CONG LIU

Tentative Ruling:

Moving party: Plaintiff Cong Liu, pro per

Responding party: Defendant Mascot International Logistics

Plaintiff Cong Liu alleges she purchased 27 display cabinets ("Cargo") using her own funds for a commercial customer and retained ownership and bore all economic risk associated with the Cargo. The Cargo was shipped from China to the United States with House Bill of Lading No. SZOH24010453. After Cargo arrived in the United States, Defendant Mascot International Logistics, Inc. took custody of it and refused to release it, despite Plaintiff's repeated demands. Plaintiff alleges that Defendant falsely misrepresented that the Cargo was detained due to various carrier lien and warehouse lien to coerce Plaintiff into paying additional charges.

The operative Complaint, filed November 18, 2025, asserts causes of action for (1) Conversion; (2) Trespass to Chattels; (3) Intentional Interference with Possessory Rights; and (4) Fraud and Deceit.

Prior to filing the instant action, Plaintiff filed a small claims case against Defendant regarding the same Cargo on March 6, 2024, Case No. SCCO2400217, which was dismissed on June 7, 2024. On March 18, 2024, Plaintiff filed a limited jurisdiction case, *Liu v. Mascot International Logistics, Inc.*, Case No. CVCO2401737 (“LJ Action”), which was voluntarily dismissed on November 18, 2025, the same date the instant action was filed. On April 28, 2026, the Court stayed all proceedings in the present case pending a ruling on Defendant’s Motion to Vacate Dismissal in the LJ Action. On May 20, 2026, the Court denied Defendant’s motion to vacate dismissal.

Plaintiff served Defendant with Plaintiff’s First Set of Requests for Admission (“RFAs”), Set One, on February 10, 2026. (Plaintiff Decl., ¶4, Exh. 1.) Defendant served its verified responses on March 17, 2026. (*Id.* at ¶6, Exh. 2.)

Plaintiff now moves to compel further verified responses to Plaintiff’s RFA Nos. 1, 3, 4, 5, 6, 7, 8, and 9. Plaintiff contends the remaining responses are evasive and incomplete, and good cause exists for further responses.

In opposition, Defendant points out Plaintiff failed to meet and confer given Plaintiff served the instant motion only hours after Plaintiff sent her meet and confer email. Defendant maintains its responses to Plaintiff’s RFAs are Code-compliant. Defendant requests monetary sanctions against Plaintiff in the amount of \$2,600.

In reply, Plaintiff repeats arguments set forth in moving papers.

Trial is not currently set.

ANALYSIS

I. Oversized Filing

California Rules of Court, rule 3.1113(d) limits the opening and responding motion to 15 pages exclusive of the caption page, the notice of motion and motion, exhibits, declarations, attachments, the table of contents, the table of authorities or the proof of service. Rule 3.1113(e) requires a party to apply to the court ex parte at least 24 hours before the memorandum is due for permission to file a longer memorandum and state the reasons why the argument cannot be made within the stated limit. Rule 3.1113(f) requires any memorandum that exceeds 10 pages must include a table of contents and a table of authorities, and any memorandum that exceeds 15 pages must also include an opening summary of argument.

Here, Plaintiff fails to include a table of contents and table of authorities as required under Rule 3.1113(f). Although acting in pro per, a pro per litigant is held to the same standards as attorneys. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536.) Furthermore, as a self-represented litigant she is entitled to the same but no greater consideration than an attorney or represented litigant (*In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 830; see also *Tanguilig v. Valdez* (2019) 36 Cal.App.5th 514, 520), and she must comply with the rules of court to the same extent as an attorney. (*County of Orange v. Smith* (2005) 132 Cal.App.4th 1434, 1444.) **Plaintiff is ADMONISH to comply with all applicable rules when filing briefs.**

II. Legal Standard

If a party has been served with responses to its RFAs, the party may move for an order compelling further responses to RFAs on the grounds that: (1) an answer to a

particular request is evasive or incomplete or (2) an objection to a particular request is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the discovery requests. (*Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220–21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits. (Code Civ. Proc., § 2030.220, subd. (a).) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (*Id.* at § 2030.220, subd. (b).) “If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission, the party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” (*Id.* at § 2030.220, subd. (c).)

III. Meet and Confer

Before filing a motion to compel a further response, the moving party must engage in a reasonable and good faith attempt to resolve informally each issue set forth in the motion and must file an appropriate declaration with the motion. (Code Civ. Proc. §§ 2030.300, subd. (b), 2031.310, subd. (b)(2), and 2016.040.) A meet and confer declaration “shall state facts showing a reasonable and good faith attempt, **either in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.) The meet and confer requirement “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435.) It requires “a serious effort at negotiation and informal resolution,” including attempts by counsel “to talk the matter over, compare their views, consult, and deliberate.” (*Id.* at 1438-1439.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1293.)

Here, Plaintiff sent an email to meet and confer regarding Defendant’s deficient responses to Plaintiff’s RFAs on May 1, 2026. (Plaintiff Decl., ¶18, Exh. 5.) This is on the same day Plaintiff filed the instant motion. This is NOT a reasonable and good faith attempt to resolve issues informally and is not Code-compliant pursuant to Code of Civil Procedure section 2016.040, subd. (a), regardless of Plaintiff’s claim to file a timely motion. The motion is noted as timely pursuant to Code of Civil Procedure sections 2033.290, subdivision (c), 1010.6, subdivision (a)(4), 1013, and 12a, subdivision (a).

The Court **CONTINUES** the motion and orders the parties to file a separate joint statement no later than 10 days prior to the continued hearing date. The joint statement should outline the additional meet and confer efforts, identify any remaining discovery request at issue, and state the parties’ respective positions. If the proposed joint separate statement will be more than 100 pages long, the Court should order the parties to provide an outline of the disputes. (Cal. Rules of Court, rule 3.1345(b)(2).)

Hearing on the motion is continued to 9/4/2026 at 8:30 a.m. in Department 6.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX VS COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF MADELINE FOX BY COUNTY OF RIVERSIDE, GLYNN ALLEN WILBURN

Tentative Ruling:

Moving party: Defendants County of Riverside and Glynn Wilburn

Responding party: Plaintiffs Madeline Fox, via GaL Melissa Fox, Lauren Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, Cory Hinkley, individually and as Successor-in-Interest to Gavin Hinkley, and the Estate of Gavin Hinkley through Successors-in-Interest Lauren Hinkley and Cory Hinkley

The court record indicates a Demurrer to the FAC by the City of Beaumont is set for 8/13/26 and a Demurrer to the FAC by the City of Calamesa is set for **8/19/26**. The court will continue the hearing on today's Demurrer to **8/19/2026** to be heard in conjunction with the Demurrer set on that day. Likewise, the Court will continue the hearing on the Demurrer currently set for 8/13/2026 to **8/19/2026** to be heard in conjunction as well. All three Demurrers will be heard on **8/19/2026** at 8:30 in Department 6.

The Court notes there is a Motion to Stay calendared for 8/14/2026. That hearing will remain on calendar as scheduled.

The Court further notes that there is a Case Management Conference calendared for 8/18/2026. The CMC will be continued to **8/19/2026** and be heard on the same day as the three Demurrers.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602387	HINDERSINN VS FCA US LLC	DEMURRER TO ANSWER ON COMPLAINT FOR PRODUCT LIABILITY (OVER \$35,000) OF MICHELE HINDERSINN AS TO FCA US LLC

Tentative Ruling:

Moving party: Plaintiff, Michelle Hindersinn

Represented by: American Lemon Law Group, LLP

Responding party: Defendant, FCA US LLP

Represented by: RoseWaldorf LLP

Plaintiff has failed to satisfy her obligation to meet and confer and file the appropriate declaration(s) in accordance with CCP § 430.41. Counsel for Plaintiff, Arega Eissagholian, filed a meet and confer declaration that is not in compliance with CCP § 430.41. Specifically, Ms. Eissagholian declares that on 5/27/25, she sent an email to Defendant's counsel detailing the grounds for the demurrer, and requesting defense counsel's availability to meet and confer by phone. (Dec. Eissagholian ¶ 3, Ex. "B".) She declares that as of the date the demurrer was filed, Defendant had failed to respond/meet and confer. (*Id.* ¶ 4.) She concludes that due to lack of cooperation, Plaintiff had no choice but to bring this demurrer. (*Id.* ¶ 5.)

Ms. Eissagholian did not call or otherwise attempt to communicate further with counsel's office. Instead, she sent a single meet and confer *email*, and asked defense counsel to provide availability to meet and confer. She did not follow up thereby placing the burden of initiating meet and confer efforts by phone on defense counsel. Ms. Eissagholian has not sufficiently complied with the statute because she did not speak with defense counsel *in person or by phone* concerning the defects in the Answer nor did she make sufficient efforts to call defense counsel. Therefore, substantive meet and confer efforts as to the Answer have not been engaged in by telephone or in person as required.

Nevertheless, the Court will reach the merits of the Demurrer.

Plaintiff, Michele Hindersinn, alleges she purchased a new 2024 Jeep Wagoneer S, which was accompanied by express and implied warranties from Defendant, FCA US LLP (FCA). She alleges that the vehicle was delivered with serious defects and nonconformities to warranty in the electrical, engine, and axle systems that impair the use, value and/or safety of the vehicle. Plaintiff presented the vehicle to FCA's authorized repair facilities but, they were unable to conform the vehicle to warranties after a reasonable number of repair attempts. Plaintiff filed her Complaint on 4/16/26 alleging three causes of action for violations of the Song Beverly Consumer Warranty Act (SBA): 1) breach of express warranty; 2) breach of implied warranty; and 3) violation of Civil Code § 1793.2(b).

On 5/22/26, Defendant, FCA, filed its Answer to Plaintiff's Complaint.

Plaintiff, Michele Hindersinn, brings this demurrer to the 3rd through 25th affirmative defenses (AD) in FCA's Answer for failure to state facts sufficient to constitute an affirmative defense (AD) and for uncertainty. (CCP §§ 430.20; 431.30(b).) Plaintiff argues that the doctrine of contributory negligence (4th AD) has been barred since 1975; and, that the 3rd, 5th through 25th Afs are conclusory and fails to state facts.

Defendant, FCA, opposes the motion arguing that the Complaint contains conclusory allegations but, Plaintiff somehow takes issue with FCA's Answer; that the alleged ADs provide sufficient notice to Plaintiff of the issues; and some ADs were alleged to preserve them if needed. Nonetheless, FCA agrees to withdraw its 4th, 9th, 10th, and 12th ADs, which makes the demurrer moot.

The Reply asserts that the Opposition is trying to salvage a series of improperly pled, boilerplate ADs based on meritless arguments; that Plaintiff tried to meet and confer in good faith but, defense counsel failed to respond; and re-asserts prior arguments.

Analysis:

DEMURRER

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125). The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672).

CCP §430.20(a), and (b) provide for a demurrer to an answer based on the failure to state sufficient facts to constitute a defense, and uncertainty. CCP §430.50(b) provides that a demurrer to an answer may be taken to the whole answer or to any one or more of the defenses set forth in the answer.

"A statement of any new matter constitutes a defense." (CCP § 431.30(b)(2).) This "new matter" is different than a simple denial of the allegations in the complaint. Rather, it is "some independent reason why plaintiff should be barred from recovery, even if everything alleged in the complaint was true." (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 6:430.)

In this case, Plaintiff asserts that certain of Defendant's affirmative defenses fail to allege sufficient facts to constitute a defense and/or are uncertain. As to the subject affirmative defenses, Plaintiff asserts that no supporting facts have been alleged; and that the alleged defenses are invalid in the context of this lawsuit. Defendant disagrees. Notably, Defendant has agreed to withdraw its 4th (contributory negligence), 9th (estoppel) 10th (waiver) and 12th (unclean hands) ADs.

There are two schools of thought with regard to demurrers to answers. The first is that it is technically correct to sustain the demurrer where defendant has not alleged any facts.

The second is to overrule the demurrer because there is no reported case dealing with what facts would be sufficient to plead an affirmative defense. Thus, once the court entertains a demurrer to an answer, it is inviting endless demurrers to the successive amended answers because the amount of facts defendant must plead is unknown.

One case is helpful here: *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367. This case did not deal with a demurrer to an answer, but was an appeal from the granting of summary judgment in favor of plaintiff. *FPI Development* reminds the Court of the purpose, historically, of demurring to an answer: A plaintiff moving for summary judgment had to disprove defendant's affirmative defenses, so plaintiff made sure, by way of demurrer, that those affirmative defenses were pled in very fact-specific allegations. The summary judgment statute, however, was amended in 1992, eliminating this requirement. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 565.) Now that the defendant, and not the plaintiff, has the burden on summary judgment with regard to defendant's affirmative defenses, a demurrer to an answer no longer accomplishes anything other than to harass the answering party.

Here, Plaintiff asserts that certain of the subject affirmative defenses fail to state sufficient facts, are uncertain, improper or invalid in this SBA action. It is accurate that the subject affirmative defenses themselves are conclusory but, so are the allegations in the Complaint. Plaintiff takes issue with the lack of facts that are alleged but, a demurrer only addresses the face of the pleading. Whether there are alleged facts or not, the merits of the affirmative defenses are not before the court on this motion.

More importantly, a pleading need only give fair notice of the issues involved. (Weil & Brown, *supra.* at § 6:128, citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550; *Prue v. Brady Co./San Diego, Inc.* (2015) 242 Cal.App.4th 1367, 1376.) Here, Defendant's Answer gives Plaintiff fair notice of the affirmative defenses asserted. If Plaintiff wants further clarification of the affirmative defenses, she can propound Form Interrogatory No. 15.1, which would require Defendant to state all facts upon which it bases its affirmative defenses. Thus, the challenged affirmative defenses (AD) are sufficiently alleged for purposes of surviving a demurrer.

Overrule the demurrer to the Answer.